

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

Court of Appeal No:
CA/HCC/0139/2022
High Court of Mannar
Case No: HC/MN/29/2017

Nagarasa Ketheeswaran

APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Amila Palliyage with Sandeepani**
Wijesooriya, Savini Udugampola Lakitha
Wakishta Arachchi, Subaj De Silva and
Gayathrika De Silva for the Appellant.
Azard Navavi, PC, ASG for the Respondent.

ARGUED ON : **18/05/2026**

DECIDED ON : **02/07/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) with another were indicted jointly in the High Court of Mannar for committing attempted murder on Balasingham Janarthanan punishable under Section 300 read with Section 32 of the Penal Code and punishable under Section 44(a) of the Firearms Ordinance No.33 of 1916 as amended.

In the second count the Appellant was charged for the possession of an unlicensed firearm which is an offence punishable under Section 22(3) of the Firearms Ordinance No.33 of 1916 as amended.

In the third count the Appellant was charged for the possession of six live cartridges without licences in violation of Section 9(2) of the Explosives Act which is an offence punishable under Section 27(1) of the Explosives Act No. 21 of 1956 as amended.

The trial commenced before the High Court Judge of Mannar as the Appellants had opted for a non-jury trial. The prosecution had called 08 witnesses and marked productions P1-P12. After the conclusion of the prosecution's case, the Learned High Court Judge had called for the defence and the Appellant and the other person had made dock statements and closed their case. After considering the evidence presented by both parties, the Learned High Court Judge had convicted the Appellant as charged and had sentenced him as follows:

- For the 1st Count the Appellant was sentenced to life imprisonment with a fine of Rs.10,000/-. In default 06 months simple imprisonment.
- For the 2nd Count Rs.10,000/- fine was imposed with a default sentence of 06 months simple imprisonment.
- For the 3rd Count Rs.10,000/- fine was imposed with a default sentence of 06 months simple imprisonment.
- Additionally, a compensation of Rs.100,000/- was imposed to be paid to PW2, with a default sentence of 01-year simple imprisonment.

Being aggrieved by the aforesaid conviction and the sentence, the Appellant preferred this appeal to this court.

The other person who was named as the second Accused was acquitted from all the charges.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in their absence. Also, at the time of argument the Appellant was connected via the Zoom platform from prison.

Background of the Case.

According to PW2, Janarthanan, the injured person in this case, in the year 2005, he was residing in Kalkadantha Kulam Camp, in the Murunkan area. On the day of the incident at about 7.00pm, the victim had heard two people talking to his mother regarding a money matter. As the way they spoke to

her was not decent, he had intervened and asked why they were arguing with his mother. At that time when he asked to reveal their identity and to show their identity cards, the Appellant had shown a pistol which was in his waist. When the argument escalated, the Appellant had slapped him once and opened fire at him which had struck his thigh area. As a result, he had fallen down with bleeding. Although the place was dark, he had identified the Appellant and the other person clearly. But he admitted it was the first time he had seen the Appellant and the other person.

Under cross examination, PW2 had admitted that he was a child soldier of a proscribed organisation but was relieved due to his tender age from the proscribed organisation.

PW5, Kirubakaran, the brother of the victim also narrated the same recollection that the victim, PW2, gave. He too identified the Appellant as the shooter.

According to PW1, Thangathurai, he was the President of the camp where the incident had taken place. When he went to the place of incident after hearing a report of a gun, he had seen that the victim was lying fallen with a bleeding injury. The witness claimed that he then took steps to transport the victim to the hospital. According to him, at the time of the incident, visibility was very poor.

According to PW4, Thiyagarajah, he had seen the incident and he had shown the other person as the shooter. He did not say that the Appellant had shot the victim.

PW10, IP/Kumara had conducted the investigation and visited the scene of the crime immediately after receiving the 1st complaint. When he went there, the victim was there with bleeding injuries. As the other person (2nd Accused) had also sustained injuries, both had been dispatched to the Murunkan Hospital. Thereafter, he had conducted the investigation at the scene and had arrested the Appellant (1st Accused) who was tied to a tree. Nothing was

recovered from him. The witness had only recovered a spent bullet from the scene of crime at that time.

After interrogation, a short statement was recorded from the Appellant in Sinhala language and proceeded to Kadhalkatha Kulam Camp where the said incident had happened. According to him, a pistol was recovered from the camp upon his statement. The witness further said that he got assistance from PS 32346 Kaliyugawaraden.

The Medico Legal Report and the Government Analyst Report was admitted under Section 420 of the Code of the Criminal Procedure Act No.15 of 1979. The Government Analyst had expressed an opinion that the cartridge which was found at the scene of crime could be fired from the pistol recovered by the police under Section 27 of the Evidence Ordinance.

PW14, PC 32346 Kaliyugawaraden vehemently denied that he assisted PW10, as a translator when the Appellant's short statement was recorded. When giving evidence, he said he helped to interpret the statement of the injured person. He said that he did not know how to read or write the Sinhala language and that he carried out the duty of interpretation after learning the language from speaking with his colleagues. He stated that since the statement that he interpreted was found in Sinhala language, he was unable to say correctly as to whose statement it was that had been interpreted.

In his dock statement, the Appellant told Court that he went to Kalkadantha Kulam Camp with two others to meet PW2, the injured person. At that time, all three who went to the camp were the members of a proscribed organisation. PW2 was also a member of the same organization but was relieved due to his tender age. As PW2 started providing information to the army, they had gone to meet PW2 to inquire about it. The Appellant was asked to stay near the gate while the 2nd Accused and another person had gone inside the camp. After hearing the gun fire, people started to run here and there. He too ran but was caught by the people, who had tied him to a

tree. The victim had showed them that the Appellant had shot him. He denied shooting the victim.

The Appellant has raised the following grounds of appeal:

1. The Learned Trial Judge erred in law by amending the indictment in terms of Section 177 of the Code of Criminal Procedure Act on the basis that the Court can convict the Appellant for a lesser offence when, the charge under Section 44(A) of the Firearms Ordinance as amended by Act No.22 of 1996, is not a cognate offence.
2. The prosecution failed to prove the ingredients under the first count of the indictment.
3. The Learned Trial Judge erred in law by convicting the Appellant for the charges in the indictment, even having decided that there are serious infirmities in the evidence led by the prosecution in terms of Section 27(1) of the Evidence Ordinance.

As the grounds of appeal raised by the Appellants are interconnected, all grounds will be considered together hereinafter.

The Appellant was arrested by the police when people had tied him to a palm tree. Nothing was recovered from his possession nor had any firearm been recovered from the place of incident except an empty cartridge. After the arrest, a brief statement was recorded in Sinhala from the Appellant which he denied. Although PW10 stated that he got the assistance of PW14 to translate Tamil into Sinhala, PW14 in his evidence categorically denied that he acted as a translator. PW14, further said that he is not conversant in Sinhala. Therefore, it is clearly revealed that translation is a made-up story by the investigation officer.

Section 27 of the Evidence Ordinance is notably an important exception to the general rule that confessions made to the police are inadmissible. Accordingly, in situations where an accused person in police custody provides information which would lead to the discovery of a material fact (such as a hidden weapon), only such specific information strictly on that

discovery can be admitted into evidence. In other words, only the exact portion of the statement which specifically leads to the recovery is admissible. Entire confessions cannot be marked and oral evidence of contents will not be permitted – only the written document can be allowed. Courts would interpret the “fact discovered” to be not the object itself but as the place of concealment and the exclusive knowledge that the accused has regarding that location. The accused must have been in the formal custody of a police officer for such information to fall under this exception. The discovery would be the confirmation of the statement, as it would then guarantee that the specific information resulting in the recovery is reliable. However, the mere recovery of an object would not be considerable if no independent proof which links it directly to the crime, exists.

In **Samson Atygala v Attorney General** [1986] 1 Sri LR. 390 the Court held that:

“(1) Section 27 of the Evidence Ordinance when it relates to confessional statements operates as, a proviso to ss. 25 and 26 of the Evidence Ordinance.

(2) For the purposes of s. 27 of the Evidence Ordinance the person making the statement should be a person accused of an offence, and be in police custody. For requirement;(a) the test is the position &. the maker when the statement is sought to be adduced in evidence and not his position when he made it. For the requirement (b) the words "police custody" do not necessarily mean detention or formal arrest. It includes police surveillance and restraining of the movements of the person concerned by the police. The term "custody" has to be interpreted within wide limits.

In the case of **De Saram v. The Republic** [2002] 1 Sri LR 288 it was noted:

“The rationale of the proviso in section 27 (1) is that even a confessional statement to a police officer, which is outside the pail of evidence, could be

proved where it contains information that is confirmed by the discovery of a fact. The word "fact" appearing in the section should be construed in the light of the definition in section 3 which states, " 'Fact' means and includes

(a) anything, state of things, or relation of things capable of being perceived by the senses;

(b) any mental condition of which any person is conscious".

It is seen that a fact is not mere object or article but something that is capable of being perceived by the senses or a mental condition of which a person is conscious."

As stated earlier, the location where the recovery was made must be established in order to accept the evidence led under Section 27 of Evidence Ordinance. According to PW10, when he arrested the Appellant, he was tied to a tree by the people of the area. Nothing was recovered from him nor recovered from the place of incident except an empty cartridge. The Appellant was taken to the police station by PW10. The recovery of the gun was done when he was brought back to the place of incident after recording a brief statement from the Appellant in Sinhala language. Although, PW10 stated that a gun was recovered upon his statement, the place where the same was recovered was not elicited from him. Hence, it renders such a recovery as doubtful.

Although the Learned High Court Judge had very correctly disregarded the Section 27(1) recovery upon the statement of the Appellant, it is clear that he misdirected himself by holding that the Appellant had shot the victim by using the gun recovered in this case. The Learned High Court Judge further stated that the Government Analyst had confirmed that the empty cartridge recovered from the scene of crime could be fired from the gun that was recovered by PW10. The portion of the relevant English translation of the judgment is re-produced verbatim as follows:

Page 237 of the translated brief.

Accordingly, the point of view of this Court is that the evidence had not been put forward in an acceptable manner under Section 27(1) of the Evidence Ordinance in order to make the claim that the pistol had been taken into custody based on the statement of the 1st accused, since the 1st Accused is a Tamil speaking person.

However, as already mentioned in the judgment, the view point of this Court is that the pistol put forward in this case had been used to injure Balasingham Janarthan during the particular incident which had been confirmed by the evidence of the prosecution witnesses that had been put forward.

Particularly, Balasingham Janarthanan and Balasingham Kirubakaran had given clear evidence stating that the 1st Accused in this case had carried out the firing with the pistol.

The report of the Government Analyst confirmed that the empty cap of the bullet recovered from the place of incident had been fired from the particular pistol that had been produced.

Hence, this Court decides that the 1st Accused of this case had shot and injured the person Balasingham Janarthan with the pistol that had been produced in this case, which had been confirmed by the prosecution witnesses.

Once the Learned Judge finds that the recovery made under Section 27(1) of the Evidence Ordinance cannot be accepted and rejected, he cannot act on the recovery evidence to convict the Appellant.

In a criminal case, a single judge cannot simultaneously have two conflicting opinions on the exact same point of law or fact, as it would go against the principle of consistency which is required in such cases.

A “dock statement” refers to when an accused person makes an unsworn, in court statement from the dock, without being subjected to cross examination and without taking the witness stand. Although courts consider such

statements as evidence, such statements would not hold as much weight as they are not made under oath and would not be subjected to cross examination. If such an unsworn statement is believed, or if it raises a reasonable doubt regarding the prosecution's case, it must be considered in the defence's favour. Moreover, it is important to note that dock statements cannot be viewed in isolation. Rather, they must be evaluated together with the entire evidence of the prosecution.

In the case of **Sarath Vs. Attorney General** (2006) 3 Sri L.R. 96 the evaluation of dock statements was discussed:

“One must bear in mind that when a dock statement is considered anywhere in the judgment, the judge who heard the evidence is aware of the prosecution case and would always consider the dock statement while considering the prosecution story. One cannot consider the dock statement in isolation.”

In **Mannar Mannan v. The Republic of Sri Lanka** (1990) 1 Sri LR 280 the court held that:

“The learned trial Judge has failed to direct the Jury on the impact of the dock statement on the prosecution evidence. It is settled law that the Jury must be directed that if the dock statement raised a reasonable doubt in their minds about the case for the prosecution, the accused is entitled to an acquittal.”

In **Ehelepola v. Officer-in-Charge, Police Station, Kandy and Another** [1998] 1 Sri LR 295 the Court held that:

“On this matter the learned Magistrate has clearly misdirected himself. It is indeed well settled law that when an unsworn statement is made by an accused from the dock, that such statement must be looked upon as evidence subject however to the infirmity that the accused had

deliberately refrained from giving sworn testimony. Though there is no statutory provision for it, the right of an accused to make an unsworn statement from the dock has been recognized by our Courts for many years. (The King v. Sittamparam) and is now part of the established procedure in our Criminal Courts. If such statement is believed, it must be acted upon, if it raises a reasonable doubt in their minds about the case for the prosecution, the defence must succeed.”

In the judgment of **SC Appeal No: 03/2024**, dated 17.03.2026 it was observed:

“This formulation affirms that although a dock statement is unsworn, it nevertheless constitutes evidence which must be judicially evaluated. It is not to be disregarded merely because the accused has chosen not to testify on oath; rather, its probative force depends upon the weight to be attached to it upon a consideration of the totality of the evidence.”

The Appellant in his dock statement stated that he had gone to the victim’s camp with two others in order to take the victim back to a LTTE Camp as per the direction of the Liberation of Tigers. When two people had gone into the camp, he had waited near the gate. He denied that he shot at PW2 Janarthanan.

In my view, the dock statement has created a doubt on the prosecution’s case as the evidence transpired that the Appellant was apprehended by the village people near the gate and he was tied to a tree. PW2 Janarthanan had admitted that he was a member of a proscribed organization for a certain period of time. Nothing was recovered from the Appellant when he was apprehended by the people. Further, the Section 27(1) of the Evidence Ordinance recovery has been rejected by the Court. The second Accused was acquitted by the Court, who was arrested by the police at the scene of crime.

Considering all the circumstances along with the evidence presented by the prosecution, I conclude that the prosecution has failed to prove the case against the Appellant beyond a reasonable doubt. Hence, I set aside the conviction and sentence imposed on the Appellant by the Learned High Court Judge of Mannar. The appeal is allowed.

The Registrar of this Court is directed to send this judgement to the High Court of Mannar along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL